



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-97 | Ridgeview Apartments – Phase 2 – Zoning Map Amendment
Date: August 12, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 08/12/2024
- Public Services Committee 08/20/2024
- Second reading 08/26/2024
- Public Services Committee 09/04/2024
- Third and final reading 09/09/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their August 5, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM AG AGRICULTURAL TO NR-3 NEIGHBORHOOD RESIDENTIAL – HIGH DENSITY FOR LAND LOCATED WEST OF CONVERSE AVENUE AND NORTH OF DELL RANGE BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 5, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block One, Scenic Development, 5th Filing, Cheyenne, Wyoming, is hereby changed to NR-3 Neighborhood Residential – High Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication of this ordinance and recording of the associated Plat.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 5, 2024

STAFF REPORT

FILE: UDC-24-97: Ridge View Apartments Phase 2 – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 8.8 acres of land from AG Agricultural to NR-3 Neighborhood Residential – High Density

LOCATION: North of Dell Range Boulevard and west of Converse Avenue

APPLICANT: Kelly Hafner

AGENT: Kelly Hafner

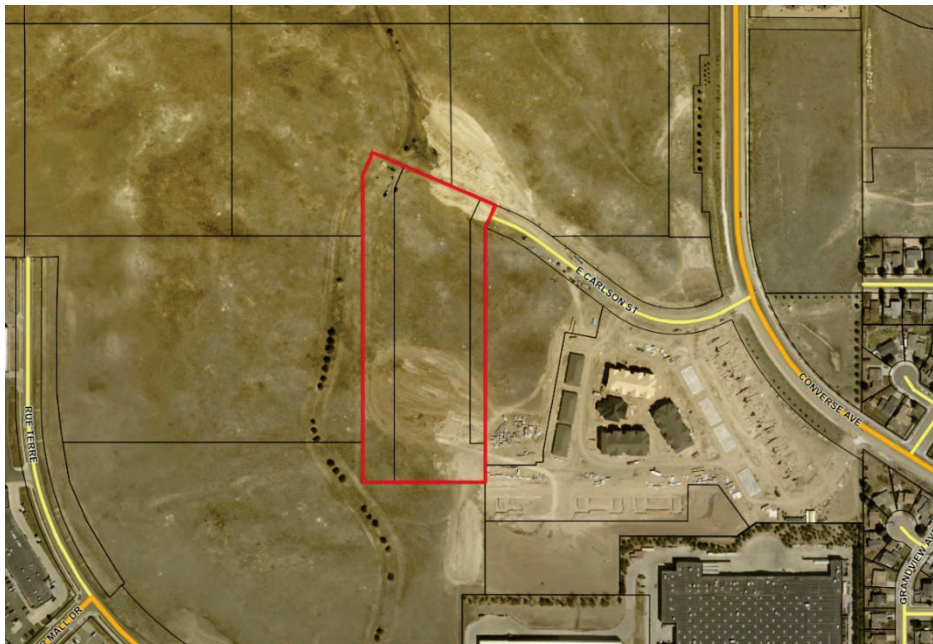
OWNER: Kipling Sheppard and WPP Thomas Ranch, LLC

ZONING: AG Agricultural

FUTURE LAND USE: Mixed-use Commercial / Urban Residential

PURPOSE: To allow phase 2 of Ridge View Apartments to develop.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Scenic Development, 5th Filing to NR-3 Neighborhood Residential – High Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from AG Agricultural to NR-3 Neighborhood Residential – High Density for roughly 8.8 acres of land. The land is currently vacant. The land is currently in the County and is being annexed. The assigned zoning with the annexation is AG. There is an associated plat with this zone change which would create one parcel and dedicate additional right-of-way for multifamily development. The plat application is PUDC-24-107.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial / Urban Residential	AG Agricultural (once annexed)	Vacant / Agriculture
North	Urban Residential	County A-1	Vacant / Agriculture
South	Mixed-use Commercial	County A-1	Vacant / Agriculture
East	Mixed-use Commercial / Urban Residential	NR-3 Neighborhood Residential High-density	Multifamily
West	Mixed-use Commercial / Urban Residential	County A-1	Vacant / Agriculture

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property and the surrounding area is Urban Residential and Mixed-use Commercial. According to the comprehensive plan the optimal City zones for the

subject property's future land use designation is any one of the residential zones (for the Urban Residential area), including NR-3; and MUB for the Mixed-use Commercial area. However, the NR-3 zone is essentially the residential portion of the MUB zone, and other commercial development is in the area.

The NR-3 zone is intended to develop with high-density housing. The comprehensive plan encourages high density housing to locate...

Based on the policies and future land use map, NR-3 zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The proposed NR3 zone is to match the existing NR3 zone to the east to allow the continuation of the existing multifamily development. This area is planned to be residential and a mix of commercial according to the Comprehensive Plan. The currently vacant land surrounding the development is anticipated to develop with a mix of commercial and higher-density residential uses. The higher-density residential uses associated with the NR-3 zone would be compatible with this anticipated development pattern.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property is being annexed into City Limits and being assigned the AG Agricultural zone. The AG zone may be appropriate if the landowner wished to continue the current agricultural use, but is not appropriate for urban development. The AG zone would not allow multifamily development. The NR3 would match the existing multifamily development to the east and allows multifamily as a use by right.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The proposed area is also being replatted and proposing to extend E Carlson St. Utilities and infrastructure will be extended with the development. The proposed development is an extension of the existing one to the east. The NR-3 zone is intended to have a more compact development pattern than the current block allows. Connections to the street network to the north, west, and south are needed, as are internal pedestrian connections if road connections are infeasible. The street network issues will be addressed with the proposed platting action.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-3 zone is intended primarily for high-density, urban residential uses with consistent neighborhood character. All uses require full access to public infrastructure and city services. The regulations are designed to protect the neighborhood character of the district and protect the primarily residential use of land. The overall density of this district should be more than 15 dwelling units per acre. The proposed project is multifamily development which will likely achieve these objectives and match the existing development to the east.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The NR-3 zone allows a variety of residential uses. The applicant intends to build a continuation of their existing multifamily development, which was recently constructed and managed to meet current design standards.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments received in regard to the proposed zone.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne
- Dell Range Boulevard Corridor Study Phase II – Section 20

Conformance with PlanCheyenne is covered by review criterion 1.

The Dell Range Boulevard Corridor Study Phase II – Section 20 plan largely considered land uses consistent with the comprehensive plan for this area.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the NR-3 zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-3 zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

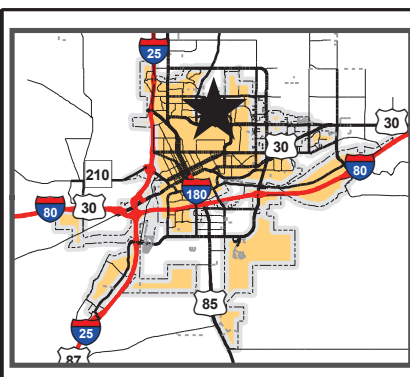
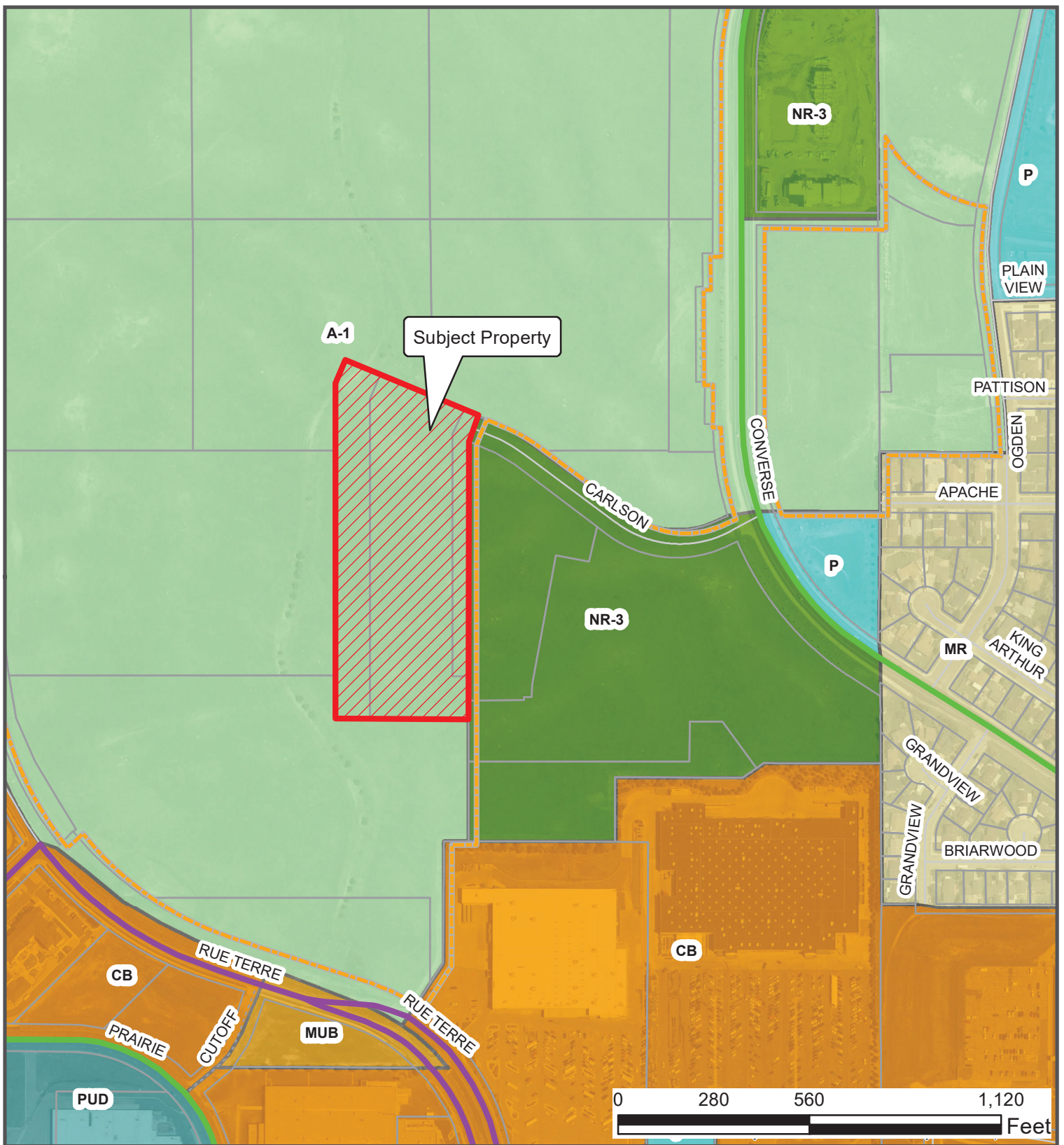
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from AG to NR-3.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

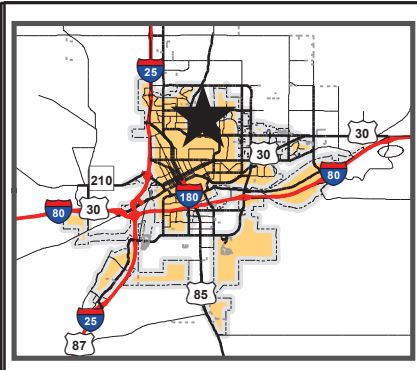
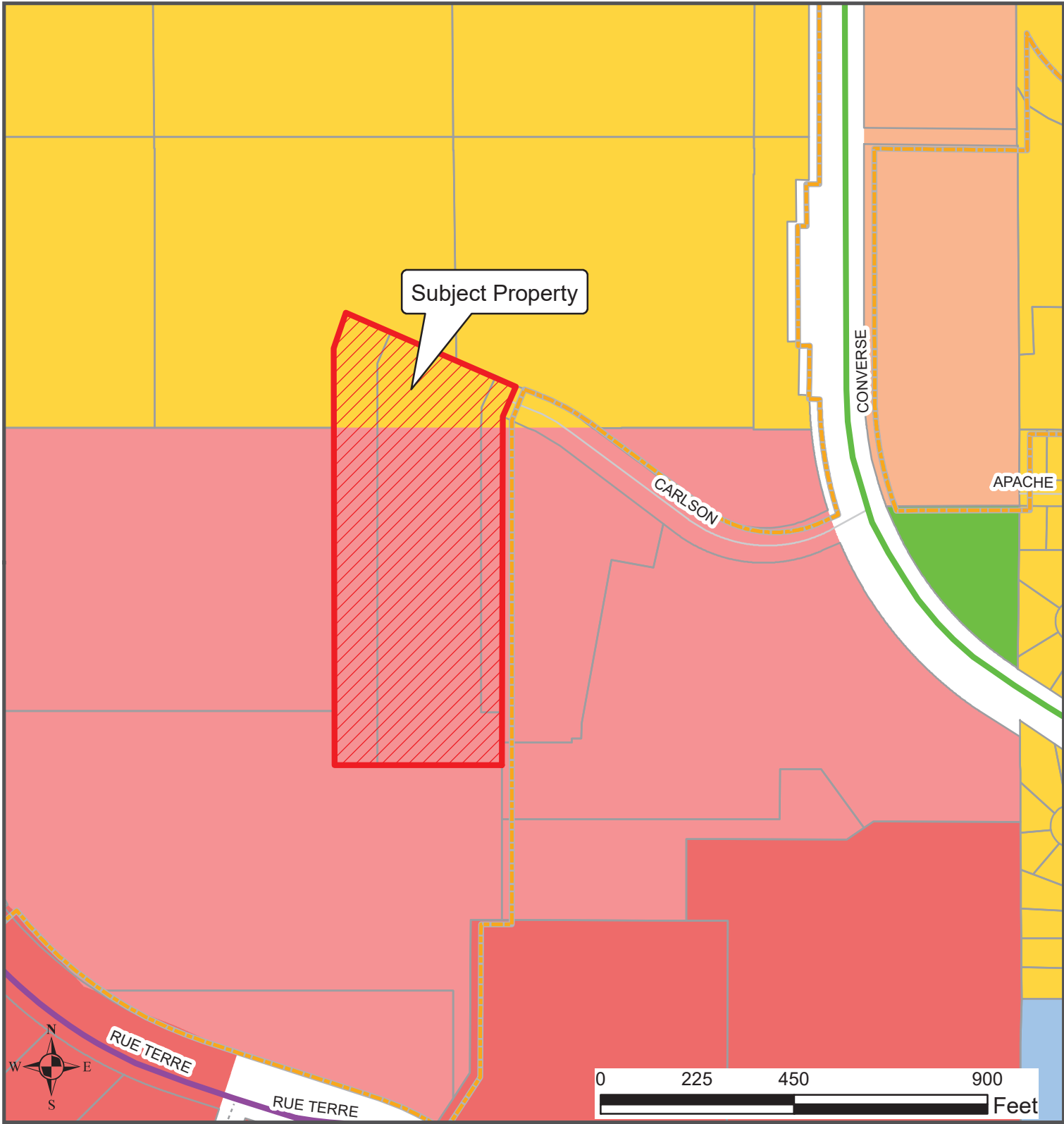


Attachment 1: Zoning Map PUDC-24-97

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-97

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Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				



Cheyenne, WY

July 29, 2024

PUDC-24-97

Zoning Map

Amendment

Status: Active

Submitted On: 6/10/2024

Primary Location0 E CARLSON ST
Cheyenne, WY 82009**Owner**SCENIC AT CEDAR SPRINGS
LLC
14572 S 790 W STE A100
BLUFFDALE, UT 840652390**Applicant** Kelly Hafner
 307-760-1776 ext. -----
 kelly.hafner@civilworxeng.com
 1807 Capitol Avenue Suite 108
Cheyenne, WY 82001

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* ?

Ridgeview Apartments Phase 2

Proposed Zoning* ?NR-3 Neighborhood Residential – High
Density

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



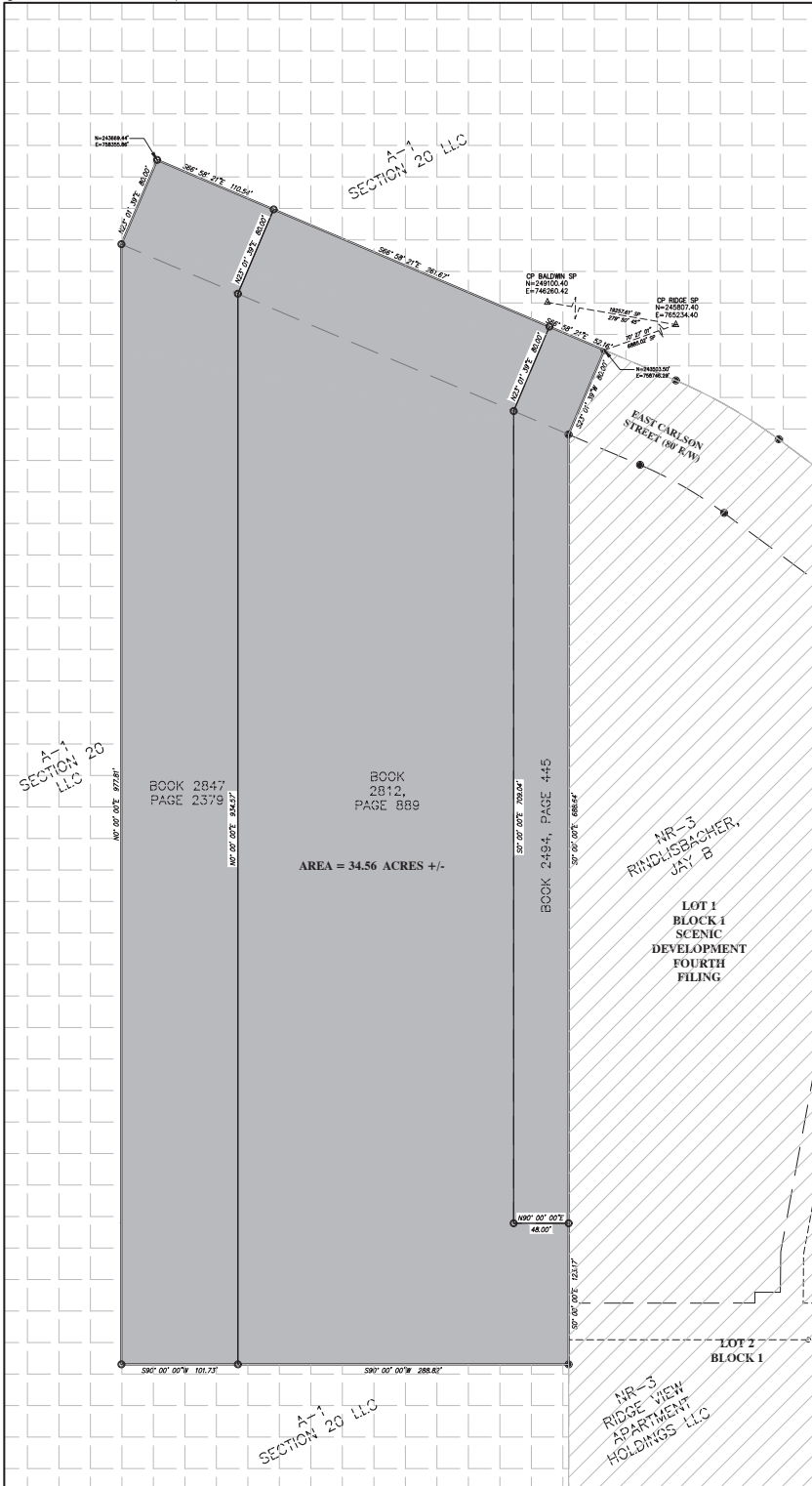
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Kelly Hafner

Jun 10, 2024



ZONE CHANGE DESCRIPTION

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2812, Page 889, from which the East Quarter corner of Section 20 bears S81° 02' 23"E, a distance of 1475.90 feet; thence along the West line of said Book 2812, Page 889 for the following 2 courses; thence S23° 01' 39"W, a distance of 80.00 feet; thence S00° 00' 00"E, a distance of 934.57 feet; thence S90° 00' 00"W, a distance of 101.73 feet; thence N00° 00' 00"E, a distance of 977.81 feet; thence N23° 01' 39"E, a distance of 80.00 feet; thence S66° 58' 21"E, a distance of 110.54 feet to the Point of Beginning. Containing 2.44 acres, more or less.

ZONE CHANGE DESCRIPTION

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2494, Page 445, from which the East Quarter corner of Section 20 bears S84° 01' 08" E, a distance of 1223.73 feet; thence along the West and South lines of said Book 2494, Page 445 for the following 3 courses; thence S23° 01' 39" W, a distance of 80.00 feet; thence S00° 00' 00" E, a distance of 709.04 feet; thence N90° 00' 00" E, a distance of 48.00 feet to the West line of Scenic Development, 4th Filing; thence S00° 00' 00" W, along said West line, a distance of 123.17 feet; thence S90° 00' 00" W, a distance of 288.82 feet; thence N00° 00' 00" E, a distance of 934.57 feet; thence N23° 01' 39" E, a distance of 80.00 feet; thence S66° 58' 21" E, a distance of 261.67 feet to the Point of Beginning. Containing 5.50 acres, more or less.

LEGEND

	PROPOSED NR-3 ZONING
	NR-3 ZONING (EXISTING CITY)
	A-1 ZONING (EXISTING COUNTY)

NOTES

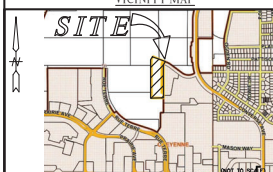
1. BASIS OF BEARINGS:
CITY OF CHEYENNE CONTROL NETWORK, CP RIDGE AND EAST.
STATE PLANE VALUES SHOWN AS "SP"

EXISTING ZONING - A-1 (COUNTY)
PROPOSED ZONING - NR-3 (CITY)

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

VICINITY MAP



ZONE CHANGE EXHIBIT FOR

A PORTION OF THE EAST HALF OF
SECTION 20, T14N, R66W, 6th P.M.
LARAMIE COUNTY, WYOMING.

PREPARED September, 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS

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www.steilsurvey.com • info@steilsurvey.com

City AG - AGRICULTURAL
<i>Uses By Right</i>
Detached Dwelling
Animal Care - Kennel
Child Care, In Home - Minor
Lodging, Bed and Breakfast
Home occupations
General Agriculture
Limited Agriculture
Nurseries, landscaping
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Cemeteries
Child Care, In Home - Major
Child Care, Center - Minor
<i>Uses requiring Board Approval (Conditional Use)</i>
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Assisted Living / Nursing Home
Animal Care – Hospital / Clinic
Child Care, Center - Major
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Agricultural equipment or product sales
Commercial stables, arenas, and show barns

City NR-3 - NEIGHBORHOOD RESIDENTIAL - HIGH
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling (“Duplex”)
Attached Dwelling (“Townhouse”)
Cottage Lots
Multi-dwelling Building (“Apartment”)
Child Care, In Home - Minor
Lodging, Bed and Breakfast
Home occupations
<i>Uses requiring Administrative approval</i>
Live/Work
Accessory Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Child Care, In Home - Major
Office – Limited (<3,500)
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Urban Loft Building
Primary and secondary schools
Community Athletic Field
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility